IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

I.A. No.59/2018
CA(CAA)NO.65/BB/17
Under Section 230 to 232 of Companies Act, 2013

IN THE MATTER OF
PRISM MULTITRADE PRIVATE LI MITED
UNICOM MULTITRADE PRIVATE LIMITED
TRIVENI RESIDENCY PRIVATE LIMITED
BENIR E-STORE SOLUTIONS PRIVATE LIMITED

Order delivered on:20TH March, 2018

Coram: Hon'ble Shri RatakondaMurali, Member (Judicial)
Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

For the Petitioner (s) 1. Shri.Karthik Ranganathan, Advocate

Heard on: 20.3.2018

ORDER

A memo was filed for extending the date of meeting fixed for convening of meeting of unsecured creditors of Applicant Company No.1,3 & 4 for considering the scheme of amalgamation.

Mr. Karthik Ranganathan, Advocate appearing for the Company has filed an Interlocutory Application giving reasons for change of date of the meeting from 12th February, 2018 to 27th April, 2018. It is stated in the Interlocutory Application that the Applicant Companies are having very large number of creditors and due to unforeseen and extenuating circumstances, notices could not be served upon the Secured and Unsecured Creditors within thirty days of the meeting as directed by the Tribunal. The Application further goes to say that the meeting of Unsecured Creditors of Applicant Company No.1 be held at 2:00 P.M, the meeting of Unsecured Creditors of Applicant Company No.3 be held at 4:00 P.M, the meeting of Unsecured Creditors of Applicant Company No.4 be held at 11:00 A.M and the meeting of Secured Creditors of Applicant Company No.4 be held at 10:00 A.M.

Considering the reasons narrated in the Application and considering the directions given by the Tribunal in the order, there is need to change the date of meeting from 12th February, 2018 to 27th April, 2018.

Accordingly, Interlocutory Application is allowed. The date of meeting is extended to 27th April, 2018 from 12th February, 2018 but, the other directions with regard to the place of the meeting, etc, would remain as they are. This order to be read along with order dated 22nd December, 2017 passed in this Application.

28/3/18

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

28/3/18

(RATAKONDA MURALI)
MEMBER, JUDICIAL